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County: los-angeles

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Case Number: 24STCV02617 Hearing Date: June 23, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 511

HEARING DATE: June 23, 2026

CASE NAME: Soho Yun v. Kunzang Tsheqang, et al.

CASE NO.: 24STCV02617

MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

MOVING PARTY: Defendant Benjamin Khorsandi

RESPONDING PARTY(S): Defendants Uber Technologies, Raiser, LLC, and Raiser-CA, LLC; Defendant Kunzang Tsheqang

REQUESTED RELIEF:

1. An order granting leave to file a cross-complaint against Defendants Uber Technologies, Raiser, LLC, and Raiser-CA, LLC, and Kunzang Tsheqang.

TENTATIVE RULING:

1. Motion for leave to file a cross-complaint is GRANTED;

2. Khorsandi to separately file their proposed cross-complaint within 7 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 31, 2024, Plaintiff Soho Yun (Plaintiff) filed a complaint against Defendants Kunzang Tsheqang, Benjamin Khorsandi, Uber Technologies, Inc., Rasier LLC, Raiser-CA LLC (Defendants) with one cause of action for negligence.

According to the complaint, on or about February 9, 2022, on Olympic Blvd. in Los Angeles, California, Defendants' negligence caused a motor vehicle accident that harmed Plaintiff. Plaintiff alleges he suffered injuries and is unable to carry out his regular occupation.

On April 12, 2024, Defendant Uber Technologies filed an answer.

On June 18, 2024, Defendant Tsheqang filed an answer.

On July 2, 2024, Defendant Khorsandi filed an answer.

On August 9, 2024, Defendants Uber Technologies, Raiser, LLC, and Raiser-CA, LLC filed a motion to compel arbitration which the court GRANTED. The court issued a stay pending arbitration.

On May 2, 2025, Defendant Tsheqang filed a motion to consolidate which the court DENIED without prejudice.

On August 27, 2025, Defendant Tsheqang filed a notice of ruling on the court's order with service on all parties.

On May 1, 2026, Defendant Khorsandi filed a motion for leave to file a cross-complaint. On June 9, 2026, Defendants Uber Technologies, Raiser, LLC, and Raiser-CA, LLC filed an opposition. That same date, Defendant Kunzang Tsheqang filed a joinder to the opposition. On June 15, 2026, Defendant Khorsandi filed a reply.

LEGAL SANDARD:

A cross-complaint may be either permissive or compulsory. Compulsory cross-complaints are based on allegations arising out of the same transactions or occurrences as the causes of action which the plaintiff alleges in his or her complaint. (Code Civ. Proc., (CCP) § 426.10, subd. (c).) Compulsory cross-complaint causes of action must exist at the time an answer to the original cross-complaint is required. (CCP § 426.30, subd. (a).) All other cross-complaints are permissive. (CCP § 428.10.) If a party fails to file any cross-complaint before or when they file an answer, they must move the court for leave to file a cross-complaint. (CCP § 428.50.) The court "shall" grant leave to file a compulsory cross-complaint, as long as the party demonstrates that, notwithstanding being late, the motion for leave is brought in good faith. (CCP § 426.50.) The court "may" grant leave to file a permissive cross-complaint "in the interest of justice at any time during the course of the action." (CCP § 428.50, subd. (c).)

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A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. (Silver Orgs. v. Frank (1990) 217 Cal. App. 3d 94, 98-99.) A motion to file a cross-complaint at any time during the course of the action must be granted unless substantial evidence of bad faith is demonstrated. (Ibid.)

ANALYSIS:

Khorsandi contends relief is warranted because they recently discovered through expert accident investigation the comparative fault of the Uber Defendants and Defendant Tsheqang. Khorsandi adds that this is a permissive cross-complaint, he will suffer substantial prejudice if he cannot bring these claims, and his reasons for not bringing this motion sooner are in good faith.¹

The Uber Defendants argue the motion is procedurally flawed due to the pending arbitration stay and this cross-complaint would impermissibly expand the scope of allegations against the Uber Defendants who are pending in arbitration. Defendant Tsheqang joined in these arguments.

Khorsandi replies that the Uber Defendants unreasonably delayed this action and he is simply trying to preserve his claims that he recently uncovered.

Bad Faith

A cross-complaint may be either permissive or compulsory. Compulsory cross-complaints are based on allegations arising out of the same transactions or occurrences as the causes of action which the plaintiff alleges in his or her complaint. (Code Civ. Proc., (CCP) § 426.10, subd. (c).) Compulsory cross-complaint causes of action must exist at the time an answer to the original cross-complaint is required. (CCP § 426.30, subd. (a).) All other cross-complaints are permissive. (CCP § 428.10.) If a party fails to file any cross-complaint before or when they file an answer, they must move the court for leave to file a cross-complaint. (CCP § 428.50.) The court “shall” grant leave to file a compulsory cross-complaint, as long as the party demonstrates that, notwithstanding being late, the motion for leave is brought in good faith. (CCP § 426.50.) The court “may” grant leave to file a permissive cross-complaint “in the interest of justice at any time during the course of the action.” (CCP § 428.50, subd. (c).)

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Here, there is no evidence of bad faith. Indeed, the Uber Defendants did not raise this in their opposition at all.

Accordingly, there is no bad faith.

Undue Prejudice - Arbitration Stay

If a court “has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (CCP § 1281.4.)

Here, the arbitration stay does not prohibit Khorsandi’s relief. First, the arbitration will not be impacted because the parties are still selecting their arbitrator. (Lozano Decl. ¶ 10.) Second, the action will remain stayed as to the Uber Defendants – even with the introduction of the new cross-complaint. There is otherwise insufficient authority supporting the Uber Defendants’ position. Therefore, there is no undue prejudice.

Accordingly, the court GRANTS Khorsandi’s motion for leave to file a cross-complaint.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for leave to file a cross-complaint is GRANTED;
2. Khorsandi to separately file their proposed cross-complaint within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: June 23, 2026 _____